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Lincoln Township Zoning Board of Appeals

TBA – Chair
Cynthia Engelhardt – Secretary
Jerry Bridges – Township Board Rep.
Marshall Swanson – Vice-Chair
Tamara McCaslin – Planning Rep.
Kim Smith - Alternate

Mary Abbott – Zoning Administrator ***Werner Mantei*** – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Annual Meeting
Wednesday, April 11, 2018

The meeting was called to order by Vice-Chair Swanson at 7:00 pm.

Roll Call:
Present – Board Members: Bridges, Engelhardt, McCaslin, Swanson
Staff: Zoning Administrator Abbott, Recording Secretary Sherrod
Absent – Alt. Kim Smith, Building Inspector Mantei, excused
Public - 2

Approval of Minutes:
Regular Meeting minutes of March 14, 2018 – It was moved by Engelhardt and seconded by McCaslin to accept the minutes as written. Motion carried with no objections.

Election of Officers: Prior to the action of election of officers, Engelhardt voiced a concern that the alternate is not present, leaving only 4 members present. She felt that no action should be taken without contacting the Board of Commissioners to have them appoint a new member. She also raised the concern that the two members who are designated as *Liaison* are not allowed to vote according to the ZBA Bylaws. Clerk Majewski explained that the term *Liaison* as referenced in the ZBA Bylaws does not refer to the type of liaison members on the ZBA as they are

the ex officio members with full rights of voting and serve as representatives of the Township Board of Trustees and the Township Planning Commission.

Engelhardt then made a motion to contact the township board to request that they appoint members in order to bring the ZBA to full membership. McCaslin seconded the motion. Motion passed with all in favor.

New Business:
1. Discussion of 2017 Ordinance: several comments were made.
2. Review of Open Meeting Conduct: Engelhardt read from an article about public meeting conduct. See Attachment #1.

Old Business:
1. Response from Township Lawyer re: March 14, 2018, Drew Hearing

Engelhardt made a motion that due to the Drew hearing not being handled pursuant to statute the ZBA rehear the variance request without further cost to the Drews if the Drews so desire. Swanson seconded. Swanson: Yes; Engelhardt: Yes; Bridges: Yes; McCaslin: Yes. Motion passed 4 to 0.

2. Update of Finding of Fact Worksheet

Engelhardt suggested some new wording to make the worksheet more usable for the ZBA. She asked them to look it over and give input. The decision was to make sure that the language is consistent across all the forms including the one used by the applicant, the one used by the ZBA, and the language in the ordinance. Engelhardt volunteered to work on this and refer it back to the full ZBA for approval. Clerk Majewski will make sure that it meets the approval of the township attorney. After full approval and adoption, the forms will be updated on the webpage.

Public Comment: None

Questions & Comments by ZBA Members: None

Adjournment: Swanson moved to adjourn; Engelhardt seconded. Motion passed with all in favor. Meeting adjourned at 7:54 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary

Attachment #1 Source: *Michigan Planner* November/December 2017, Michigan Chapter of the American Planning Association.

The ***Officially Yours*** feature provides local appointed and elected officials with both basic and advanced topics addressing issues unique to their role as a local government representative.

Cindy will Talk

GETTING THE MOST OUT OF A PUBLIC MEETING, *Part Three*

THIS IS PART 3 OF A THREE-PART SERIES. Part 1 discussed how to ensure that municipal processes are transparent and consistent. Part 2 discussed the benefits of anticipating and empathizing, but not necessarily agreeing with, opposing points of view. This final installment covers good meeting management practices.

The officials considering the approval of a proposal (whether it's a master plan, ordinance, or a development) have been appointed (or elected) and entrusted to make decisions in the community's best interests.

Prior to the meeting, copies of the By-Laws or Rules of Procedure should be available for public review. Depending on a municipality's resources, meeting procedures can also be posted ahead of time. Once the Chairperson calls the meeting to order, prior to any proposal's introduction, s/he should review how the meeting will be conducted, if a decision is anticipated at the end of the meeting and, if a decision is not anticipated, what the next steps are and when that will likely occur. Audience members also should be reminded of proper meeting etiquette.

Officials should pay attention to whomever is speaking, whether it is staff, a fellow board or commission member, the applicant or a resident. Good body language shows respect and attentiveness. Side conversations, note writing (however well intended) and nonverbal expressions are distracting.

When appropriate, acknowledge concerns. During the public comment section of a meeting, avoid getting off topic or engaging in debate. However, after public comments, it is good practice for the chairperson or individual officials to acknowledge what was heard. Active listening means reiterating what was said to make sure those sharing their concerns understand that their message was heard and those receiving the information understand accurately the concerns being expressed. This demonstrates that officials and the municipality care about residents and are willing to explore solutions to potential problems.

If the audience or a participant is disruptive, the chairperson should be prepared to use the gavel to call the person(s) to order. S/he can refer to the By-Laws or Rules of Procedure as reminder of expected decorum. An official is not required to respond to a speaker's accusations or suggestions. When appropriate, an official can acknowledge the resident's input and move on. In many cases, but not all, the less response a belligerent person receives, the less s/he is encouraged to continue. Officials should not take challenges to the process or proposed development as personal attacks.

A municipality may consider having comment cards available to people who are uncomfortable speaking in public. The comments can be collected and read aloud by the Chairperson at the end of the comment period. Resource permitting, a municipality may have 2 or 3 microphones so people do not have to speak from a podium.

Once core concerns about a project are identified, they can be addressed. Officials can ask the residents (and developer) about possible solutions, share their own ideas, and seek reactions or refinements. Sometimes, a formal hearing can limit the opportunity to cooperatively think about and create a better alternative. Consider a postponement if the commission thinks a better proposal will result. Do not postpone to avoid making a difficult decision.

Even good plans, ordinances, or projects have some type of costs or disadvantages. Officials must work to mitigate those disadvantages. In the face of controversy, it can be difficult to determine if a proposal is appropriate, or if community opposition is swaying a determination.

State the reasons and justifications for your vote. This is sometimes referred to as Finding of Fact. In the case of a plan amendment or an ordinance amendment, communicate factors such as:

- What conditions create the need for this change?
- What are the underlying causes?
- What does the master plan recommend?

In the case of a development proposal, the zoning ordinance's standards for approval will provide a guide for decision making. Officials should communicate how the proposal meets (or does not meet) the standards for approval and ordinance requirements. For example, neighbors express concern that a commercial development permitted under the zoning ordinance will result in more trash and noise. Officials can underscore that the required screening and trash receptacles will minimize concerns,

but should also emphasize that the proposed development meets ordinance standards, various goals of the master plan, and will bring needed jobs to the community.

It's important to remember that whether or not a Planning Commission or legislative body decides to approve a controversial proposal, residents will be disappointed. A successful public meeting doesn't necessarily mean that everyone leaves the meeting satisfied with the outcome. A successful meeting means that the process was fair and transparent, people were able to share their concerns, officials behaved in a trustworthy manner, and that concerns were considered in the decision making process.

Sources:

City of Ann Arbor: http://www.a2gov.org/departments/planning-development/development-review/Documents/Citizen%20Participation/Communication%20Guide%20for%20Residents%20v5.pdf

Cornell Law School, Legal Information Institute: https://www.law.cornell.edu/cfr/text/12/263.9

Institute for Local Government: http://www.ca-ilg.org/

Managing Contentious Meetings: a Public Hearing Scenario and Role Play: https://www.nccommerce.com/Portals/2/Documents/CommunityDevelopment/RegionalOffice/WRO/PlanningBoard/STEPHENS_ContentiousMeetings.pdf

Managing Neighborhood Change by Alan Mallach

Mind Tools, Essential Skills for an Excellent Career

Municipal Research and Services Center: http://mrsc.org/Home/Explore-Topics/Governance/Citizen-Participation-and-Engagement/Communication-and-Citizen-Participation-Techniques.aspx

University of Waterloo, Centre for Teaching Excellence: https://uwaterloo.ca/centre-for-teaching-excellence/teaching-resources/teaching-tips/communicating-students/telling/effective-communication-barriers-and-strategies

Western City, The Monthly Magazine of the League of California Cities: http://www.westerncity.com/Western-City/September-2011/Strategies-for-Creating-a-More-Collaborative-Effective-Council/

If you are interested in more information on best practices like these, MAP offers several workshops on this topic. The Community Engagement Workshop examines various public engagement techniques that ensure meaningful input. The Risk Management Workshop includes topics such as identifying a conflict of interest, applying discretionary standards during special land use reviews, reasonable expectations of a developer, and how your comprehensive plan can minimize risk.

A TRAINING WHEELS TESTIMONIAL



THE CITY OF HOWELL'S downtown and its neighborhoods are bisected by Grand River Avenue and Michigan Avenue, making non-motorized transportation between them challenging. Pedestrian and bicycle transportation between neighborhoods and downtown is challenging in the City of Howell since it is bisected by Grand River Avenue and Michigan Avenue. While the City prepared for road work with Complete Streets in mind, traveling to downtown still required cycling or walking along busy roads. 2016 brought a renewed focus on bicycling in the community and the benefits that being a bike-friendlier community would bring.

An old Traffic Control Order which precluded any wheeled, non-motorized vehicles in the downtown was reversed. A 'dismount zone' to encourage cyclists to share the sidewalk with downtown pedestrians opened the downtown to a broader group of potential cyclists: those who are more likely to ride on the sidewalk than on a busy street.